

Authority for Personal Data
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The Chair of the House of Representatives of the States General
P.O. Box 20018
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Date

May 2, 2024

Our reference

z2024-003515

Your letter dated

January 31, 2024

Contact person

Your reference

2024-003515

Subject

Assessment of the proposed law regarding the assessment of end-of-life assistance for the elderly upon request

Dear Mr. Bosma,

In your letter dated January 31, 2024, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the proposed law of member Podt concerning the assessment of end-of-life assistance for the elderly upon request and amending the Penal Code, the Individual Healthcare Professions Act, and several other laws (Law on the assessment of end-of-life assistance for the elderly upon request) (hereinafter: the proposed law).

The AP has made a remark regarding the explanatory memorandum in the interest of clarity about the grounds for processing.

Scope of the proposed law

There are elderly individuals who, at some point, consider their lives to be 'complete'.¹ For these elderly individuals, the proposed law creates the possibility to express their wish to die to an end-of-life assistant in order to end their life at a self-chosen moment. An exception is also made to the criminalization of assistance in suicide by an end-of-life assistant.

To implement the wish to die, a number of due diligence requirements apply. Personal data of the elderly individual will be processed, including health data. The end-of-life assistant will obtain this data from the elderly individual themselves, but will also gather information from the (general) practitioner of the elderly individual. Furthermore, they must consult another, independent end-of-life assistant who will provide their opinion to the end-of-life assistant regarding compliance with the due diligence requirements, which also involves processing personal data of the elderly individual. The proposed law provides specific grounds for this.² Regarding the health data to be processed by the (independent) end-of-life assistant and the (general) practitioner, the exception to the prohibition on processing special personal data under Article 9, paragraph 2, subparagraph g, of the GDPR applies. This is because the end-of-life assistance for an elderly individual—and the due diligence criteria to be applied in that context that necessitate the processing of health data—concerns a compelling general interest.³

Legislative assessment

Clarity on applicable grounds for processing

The provision of medical data can only be lawful if three cumulative conditions are met: there must be a processing ground, just as with ordinary personal data; there must be a valid exception to the principle prohibition on processing special personal data; and the medical confidentiality must be allowed to be breached. All three are addressed in the explanatory memorandum. However, regarding the ground, it follows from the explanation of the draft that the request for personal data by the end-of-life assistant from the (general) practitioner is primarily seen as a compatible further processing as referred to in Article 6, paragraph 4, of the GDPR. To the extent that this is not the case, the processing ground can also be found in Article 6, paragraph 3, of the GDPR, according to the explanation.⁴ A similar reasoning follows the explanation regarding the data exchange between the end-of-life assistant and the independent end-of-life assistant (and vice versa).⁵

The AP is of the opinion that the explanation is not clear enough regarding the processing ground. This is important because otherwise questions may arise later in practice. The processing of personal data in this proposed law has a mandatory character. The AP deduces from the explanation that there are two reasons for this. First, the end-of-life assistant will have to process personal data, including health data, to comply with the due diligence requirements from Article 2 of the proposed law.⁶ These requirements aim (in particular) to obtain a complete picture of any medical grounds related to the wish to die.⁷ This requires that they must turn to the (general) practitioner of the elderly individual—who is obliged to provide information upon request—and also consult the independent end-of-life assistant. Second, an obligation is necessary because otherwise the professional secrecy—which applies to both the (general) practitioner and the (independent) end-of-life assistant⁸

² Article 3 of the draft.

³ Explanatory memorandum, p. 49.

⁴ Explanatory memorandum, p. 49.

⁵ Explanatory memorandum, p. 50.

⁶ This follows from the text of Article 3 of the draft and also from p. 45 of the explanatory memorandum.

⁷ Explanatory memorandum, p. 35-37 and p. 61.

⁸ The (general) practitioner is a professional practitioner in the sense of the Individual Healthcare Professions Act (Wet BIG) and is subject to medical confidentiality as stated in Article 88 of the Wet BIG and in Article 7:457, paragraph 1, BW. The draft provides that the (independent) end-of-life assistant is also registered as a professional practitioner and is subject to medical confidentiality.

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- would stand in the way of the provision of the relevant personal data.⁹ Therefore, the draft legislation includes the obligation to process personal data. This legal obligation is the (only) GDPR processing basis.¹⁰ Since this obligation also has a new objective, in the opinion of the AP, there can be no question of further processing that is compatible with another purpose. Assessment against the criteria of Article 6, paragraph 4, introductory phrase, items a through e, can therefore be omitted in this context.

Disclosure

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman

9 Explanatory Memorandum to the draft, pp. 50-52.

10 Article 6, paragraph 1, introductory phrase and item c, of the GDPR.